

23TRCV04305 23TRCV04305

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Case Number: 23TRCV04305 Hearing Date: July 22, 2026 Dept: B

Moving Parties: Plaintiff Jasmine Farmer

Responding

Party: Defendant City of Los Angeles

Motion to Compel Further

Responses to Request for Production of Documents, Set Two

The Court considered the moving, opposition, and reply papers.

RULING

The

motion is GRANTED. See ruling below.

BACKGROUND

On December

28, 2023, Jasmine Farmer filed a complaint against defendant City of Los Angeles for dangerous condition of public property.

On

July 25, 2024, plaintiff filed an amendment designating Delta Air Lines, Inc. as Doe 1.

On

February 25, 2025, plaintiff filed an amendment designating Hensel Phelps

Parent 1 Inc. as Doe 2.

On May

19, 2025, Hensel Phelps Construction Co. filed a cross-complaint against Roes 1 through 100 for implied indemnity, contribution, and declaratory relief.

LEGAL

AUTHORITY

45-Day

Rule: This motion must be served within 45 days after service of the response in question (extended if served by mail, overnight delivery, or fax; see CCP §1013); otherwise, the demanding party waives the right to compel any further response to the CCP §2031.010 demand. CCP §§2031.310(c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal. App. 4th 736, 745. The 45-day time limit is mandatory and jurisdictional. *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410. The parties, however, can also agree in writing on a specific later date by which to file the motion to compel. CCP §2031.310(c).

Meet-and-Confer

Requirement: The motion to compel further responses must be accompanied by a declaration showing “a reasonable and good faith attempt” to resolve the issues outside of court (so-called “meet and confer”). CCP §§2016.040, 2031.310(b)(2).

Separate

Statement: Any motion involving the content of a discovery request or the responses to such a request shall be accompanied by a separate statement. This includes a motion to compel further responses to demand for inspection of documents or tangible things. CRC Rule 3.1020(a)(3).

Request

for Production of Documents

On

receipt of a response to an inspection demand, the demanding party may move for

an order compelling further responses to the demand if the demanding party deems that any of the following apply:

- (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or
- (3) an objection in the response is without merit or too general. CCP § 2031.310(a).

A

statement of compliance shall state that the production, inspection, and related activity demanded will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. CCP § 2031.220.

“A representation

of inability to comply with [a] particular demand for inspection . . . shall affirm that a diligent search and reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. This statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” CCP § 2031.230.

A

motion to compel further response to requests for production “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” CCP §

2031.310(b)(1). “To establish ‘good cause,’ the burden is on the moving party to show both: [1] Relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and [2] Specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial).

The fact that there is no alternative source for the information sought is an important factor in establishing ‘good cause’ for inspection.

But it is not essential in every case.” Weil & Brown, Civil Procedure Before Trial, 8:1495.6

(citations omitted). “Declarations are generally used to show the requisite ‘good cause’ for an order to compel inspection. The declarations must contain ‘specific facts’ rather than mere conclusions.” Id. at 8:1495.7 (citation omitted). “The declarations may be on information and belief, if necessary. However, in such cases, the ‘specific facts’ supporting such information and belief (the sources of the information) must also be alleged.” Id. at 8:1495.8 (citation omitted). “Most declarations are made by the attorney for the moving party, who is usually more familiar with the relevancy and ‘specific facts’ constituting ‘good cause’ for inspection.” Id. at 8:1495.9.

“If ‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure (the same as on motions to compel answers to interrogatories or deposition questions. . .).” Id. at 8:1496 (citation omitted).

DISCUSSION

Plaintiff

Jasmine Farmer requests that the Court compel defendant City of Los Angeles aka City of Los Angeles, Department of Airports, aka Los Angeles World Airports further responses to plaintiff’s request for production of documents, set two, nos. 35-48.

The

complaint alleges that this lawsuit arises from an incident that took place on April 11, 2023 at approximately 4:20 a.m., at the LAX Airport. Complaint, ¶10. The City of Los Angeles owned, occupied, leased, used, regulated, controlled, managed, maintained, operated, supervised, repaired, and possessed the roof and ceiling at the LAX Airport. Id., ¶11.

At the time of the incident, plaintiff was working as a TSA agent. On that day, she was tasked with checking in employees at the Known Crew Member podium in terminal 3. Id., ¶12.

While performing this task, plaintiff was at a podium inside the airport. Id., ¶13. Above the podium are ceiling tiles. Id., ¶14.

While plaintiff was checking in airline staff, a wet ceiling tile fell from the ceiling and struck her in the head. As a result, she suffered severe and permanent injury, including a traumatic brain injury. Id., ¶15.

Plaintiff

explains that on April 1, 2026, plaintiff served defendant LAWA with Request for Production of Documents, Set Two. On April 2, plaintiff's counsel reached out to defense counsel to provide "advance notice" of plaintiff's intent to notice the deposition of LAWA's PMQ and five LAWA employees. On May 5, defense counsel requested a two-week extension but did not provide witness availability. Plaintiff's counsel granted a one-week extension to May 12. On May 11, defense counsel requested another week extension, which plaintiff's counsel granted to May 19. On May 19, defense counsel requested an additional two-week extension, "citing ongoing delays in receiving responsive documents and information from LAWA." Plaintiff's counsel granted an extension to May 26. On May 26, defense counsel requested another extension. Plaintiff's counsel responded, granting one final extension and requiring that both the outstanding discovery responses and deposition availability for all six noticed LAWA witnesses be provided no later than June 2. On June 2, defense counsel contacted plaintiff's counsel by phone and advised that they were still working to obtain both discovery responses and deposition dates from LAWA and required additional time. Plaintiff's counsel declined to grant a further extension. As of the filing date of the motion on June 10, plaintiff's counsel had not received further responses.

In opposition, LAWA contends that when it did not receive a "brief additional extension of time," defendant served objection-only responses on June 2 and "expressly advised Plaintiff that substantive responses would be forthcoming." LAWA argues that the "rashly filed" motion is the result of plaintiff's "failure to adequately engage in the meet and confer process." LAWA asserts that it has agreed to provide substantive responses to the discovery and "that Plaintiff hastily resorted to unnecessary motion practice does not mean a legitimate discovery dispute exists." LAWA contends that it did not file a response to the separate statement because defendant has already agreed to provide responses to the subject discovery subject to its objections.

In the
reply (filed on July 15), plaintiff states that defendant has still not served
substantive responses or any documents.
Plaintiff notes that defense counsel has represented that responses will
be provided by the end of July.
Plaintiff argues that further meet and confer would not have resolved
this dispute.

The
Court finds that plaintiff properly served the discovery requests. Plaintiff's counsel reasonably provided
numerous extensions to respond.
Plaintiff's counsel also reasonably declined to provide a further
extension. Defendant admittedly served
objections only because plaintiff's counsel did not provide any further
extensions. Defendant failed to file a
response to plaintiff's separate statement, not even attempting to justify any
of defendant's objections.

The
Court finds that defendant's objections lack merit.

The
motion is GRANTED.

Sanctions

Plaintiff
requests \$3867.50 (\$595/hr. x 6.5 hrs.) in sanctions against defendant LAWA. Defendant requests \$960 in sanctions against
plaintiff and plaintiff's attorney. The
Court finds that sanctions are warranted against defendant in the amount of \$2380
(\$595/hr. x 4 hrs.).

ORDER

The motion is GRANTED.
Defendant LAWA is ordered to serve further responses to plaintiff's
request for production of documents, set two, by July 31.

Plaintiff's
request for sanctions is GRANTED. Defendant

LAWA is ordered to pay sanctions to plaintiff in the amount of \$2380 within thirty days.

Defendant LAWA's request for sanctions is DENIED.

Plaintiff is ordered to give notice of ruling.